

CLOUD WORKSPACE TERMS OF SERVICE

These Terms of Service govern access to the enterprise cloud collaboration platform operated by SyncWave Collaboration Platforms Ltd. ('Provider') by registered business users ('Customer').

1. SUBSCRIPTION GRANT AND ACCESS RIGHTS

Provider grants Customer a non-exclusive, non-transferable, revocable subscription right to access and use the cloud collaboration software solely for internal business operations.

2. SERVICE AVAILABILITY AND SERVICE CREDITS

Provider targets ninety-nine point nine percent (99.9%) monthly service uptime. If monthly availability falls below 99.9%, Customer is eligible for a five percent (5.0%) service credit per 1% of downtime as Customer's sole and exclusive remedy.

3. DISCLAIMER OF CONSEQUENTIAL DAMAGES

In no event shall Provider be liable for any indirect, incidental, special, punitive, or consequential damages, including loss of profits, data corruption, or business interruption.

4. AGGREGATE MONETARY LIABILITY LIMITATION

Provider's total cumulative monetary liability arising out of or related to this agreement shall not exceed the total subscription fees actually paid by Customer in the six (6) months preceding the claim.

5. UNILATERAL MODIFICATION OF TERMS

Provider reserves the right to modify these Terms and subscription pricing upon thirty (30) days notice via email. Continued platform access after the effective date constitutes binding acceptance.

6. BINDING ARBITRATION AND CLASS ACTION WAIVER

All disputes arising under these Terms shall be resolved exclusively through final and binding arbitration administered by the American Arbitration Association in San Francisco, California. Both parties waive any right to bring class actions.